Impact on the Rohingyas, 1948–2010

For the Rohingyas, the period immediately after independence meant restrictions, as the region was deemed a frontier area, reflecting the tensions of the war years and the short-lived revolt of 1947. However, compared to the significant armed revolts by the communists, Shan and Karen tribes, Arakan remained peaceful.

Key to the steady increase in the level of discrimination and violence aimed at the Rohingyas has been the shifting legal definition of Burmese citizenship. The story that the Rohingyas are somehow alien to the state of Myanmar now finds its expression even in the constitution and the law of the country. One of the preconditions to genocide is the systemic denial of standard legal rights to an identified group. In the Introduction it was noted that a key part of the persecution of and discrimination against the Rohingyas is denying that they are legitimate citizens of the state they were born in and live in.[86]

Successive UN reports have emphasised that 'race and ethnicity cannot be determining factors in the granting of citizenship. Instead, the law needs to provide for objective criteria that comply with the principle of non-discrimination, such as birth in the territory and descent (with citizenship being passed through a parent who is a citizen)'.[87] The 1947 Constitution[88] of Burma placed considerable stress on the question of citizenship, and also retained the aspect of administrative convenience[89] in decision-making that had been a feature of British colonial law. Of importance in terms of citizenship was the clause:

> The President of the Union may exempt any person or any class of persons either wholly or partially or temporarily or otherwise, from all or any or the provisions of this Act contained in any of the sections subsequent to section 5 and may at any time revoke any such exemption.

The democratic period, 1948–62

Despite the relatively peaceful nature of Arakan, even in the late 1940s the Rohingyas were placed into a special category compared with other ethnicities in Burma. The democratic government of Prime Minister U Nu in the 1950s accepted that the Rohingyas were an indigenous ethnic group,[90] but they were not one of the named ethnicities given full nationality in the 1947 Constitution. In a public speech on 25 September